

PERFORMANCE ASSESSMENT PLAN

**N40080-25-R-1007
REGIONAL GROUNDS MAINTENANCE AND
PAVEMENT CLEARANCE SERVICES**

National Capitol Region

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Performance Assessment Plan

<<Note to Spec Writer/COR: The Performance Assessment Plan must be tailored as required for local and contract specific requirements. However, specific annotation is included where local information or requirements must be entered. Refer to BPMS B-14.3, Performance Assessment and the P-203 Performance Assessment User Guide for additional information.>>

1. Introduction

1.1 Purpose

The Performance Assessment Plan (PAP) establishes Performance Assessment (PA) provisions for Contract N40080-25-R-1007, Regional Grounds Maintenance and Pavement Clearance Services. Dispersion of work at the various locations to include but not limited to:

Annex 15 Facilities Support

- Naval Support Activity Washington Navy Yard, Washington, DC
- Naval Research Laboratory (NRL), Washington, DC
- Marine Corps Barracks (MBW), 8th and I Streets, Washington, DC
- Naval Support Facility Arlington Service Center (ASC), VA
- United States Naval Observatory (USNO), Washington, DC
- Vice President's Residence (Quarters A)
- Naval Support Facility Carderock, Bethesda, MD
- Naval Support Facility Dahlgren and Annexes, Dahlgren, VA
- Naval Support Facility Indian Head and Annexes, Indian Head, MD
- Naval Air Station Patuxent River and Annexes, Patuxent River, MD (Reserved)
- Naval Support Facility Annapolis and Annexes, Annapolis, MD (Reserved)
- Marine Corps Base Quantico (MCBQ), Quantico, VA
- Naval Support Activity Bethesda, Bethesda, MD

The PAP describes the methodology for assessing the Contractor's performance that will be used to provide Contractor feedback, update Contractor Performance Assessment Rating System (CPARS), and determine eligibility in earning of Option and exercise term years. The PAP is supplemented by the Functional Assessment Plan (FAP) used for planning and scheduling assessments which are documented on the Performance Assessment Worksheet (PAW) to report Government observations of Contractor performance. The Government's role is to assess Contractor's work against measurable performance standards, and per the principles of Performance Based Services Acquisition (PBSA), the Contractor's role is to ensure its quality through successful implementation of its Quality Management System (QMS). Per FAR Subpart 46.4, Government PA "shall be performed at such times and places as may be necessary to determine that the supplies or services conform to contract requirements" in order to ensure payments are made only for services that meet performance standards specified in the contract. All forms and documents referenced in this PAP are listed in Attachment A.

1.2 Partnering

Effective partnering and establishing a positive relationship between the Government and the Contractor is essential in fulfilling a performance-based requirement. The Government's relationship with the Contractor should be one that promotes a strong and positive business alliance to achieve mutually beneficial goals, such as timely delivery and acceptance of high-quality services through the use of efficient business practices. Business relationships should seek to create a cooperative environment to ensure effective communication between the parties. Teamwork, cooperation, and good-faith performance are important for meeting mission objectives and resolving conflicts and problems. Each party should clearly understand the goals, objectives, and needs of the other. It is essential that the Government and the Contractor work together as a team to communicate expectations, agree on common goals, develop a common understanding of measurable standards, and identify and address problems early in the contract to achieve desirable outcomes. At the initial partnering meeting, the Government and Contractor will establish a periodicity for routine meetings and specify attendees at appropriate levels within their organizations to ensure an open and productive communication process is being maintained. Meeting minutes will be documented and filed in the COR File.

2. Roles and Responsibilities

The Government's key roles and responsibilities for performance assessment are as follows:

Facility Support Contracts (FSC) Branch Head. The FSC Branch Head provides direct supervision of FSCMs, PARs, Spec Writers, etc. assigned to the FSC Branch. The FSC Branch Head is responsible for ensuring adequate funding and staffing to support the specification development, contract management, and performance assessment function of the branch as well as all personnel management responsibilities.

Facilities Support Contract Manager (FSCM). The FSCM is the overall technical lead for the management of Facility Support Contract requirements from cradle to grave.

Contracting Officer (KO). The KO is the ACO and/or PCO assigned to the contract. The KO provides written appointment of CORs and has final authority for administration of the contract per FAR Part 42—Contract Administration and Audit Services, including responsibility to ensure Contractor compliance with contractual quality assurance and safety requirements and the approval (or disapproval) of the Contractor's requests for payments. The KO should remain in routine communication with the COR regarding Contractor performance and serve as a member of the PAB.

Contracting Officer's Representative (COR). The COR is responsible for monitoring the Contractor's technical compliance and progress based on the contract requirements specified in the PWS and in accordance with the PAP. The COR performs a variety of contract administration duties that includes oversight of PA, documenting and rating Contractor performance, reviewing invoices, and acceptance of work. Specific duties are documented in the COR appointment letter issued by the KO.

Performance Assessment Representative (PAR). The PAR performs duties as the representative who assesses Contractor performance in support of the Contracting Officer Representative (COR). The PAR assists with performance assessment schedule development, periodically observes Contractor performance, reviews delivered services, reviews quality management corrective actions, periodically assesses and documents Contractor performance on Performance Assessment Worksheets

(PAWs) and communicates findings as necessary with the Contractor, FSCM, and COR. The PAR generates the Monthly Performance Assessment Summary (MPAS) for final COR review and signature. The list of PARs assigned to this contract is provided in Attachment B.

Note: Throughout NAVFAC policy, processes, and training, the term Performance Assessment Representative (PAR) refers to anyone responsible for conducting assessments of a NAVFAC administered Facility Support Contract. The term PAR will be used in reference to any individual tasked with providing contract oversight support to the COR, including as a collateral duty of other PWD or customer personnel, regardless of billet. All personnel assigned these duties must follow the guidance and direction provided to PARs.

Technical Advisor. The identification of technical advisors may be required to provide additional Subject Matter Expert (SME) support based on the technical nature of the work where the COR and/or assigned PARs do not possess the relevant knowledge/expertise and assignment of a Customer PAR is not warranted. The purpose of technical advisors is to provide support as needed by the COR and/or assigned PARs regarding technically complex work requirements, including technical interpretation, review of technical deliverables and submittals, and providing advice and guidance in their respective fields of expertise. The list of Technical Advisors supporting the COR/PAR on this contract is provided in Attachment C.

3. Training

To effectively implement the PA Program, individuals who monitor the Contractor's performance should be experienced in the annex/sub-annex areas for which they are assigned and adequately trained.

Mandatory training standards for all personnel performing PA of NAVFAC contracts are specified in BPMS B-14.3, Performance Assessment. Additionally, safety training requirements are detailed in BPMS B-14.18, FSC Safety.

CORs assigned to provide oversight of this contract must meet the applicable training requirements detailed in Enclosure 5 of DoDI 5000.72, DoD Standard for Contracting Officer's Representative (COR) Certification and must be appointed in writing by the KO per BPMS S-18.3.6.

4. Safety

Proper oversight of Contractor safety is an integral part of effective performance assessment. The PAR will perform assessments of the Contractor's compliance with safety requirements specified in Annex 0200000, Spec Item 2.9, Contractor Safety Program, of the contract. The PAR may be present during any local safety briefings. If the PAR observes a violation of any safety requirements by the Contractor, the PAR must:

- Report the safety hazard resulting from unsafe acts or conditions, defective tools, materials, or equipment used by the Contractor to the COR.
- When imminent danger is apparent (where, if the hazard is not immediately corrected, there is a high probability that a serious accident will occur, life will be in danger or there will be extensive property damage), immediately inform the Contractor and request immediate action be taken to correct the hazard. If the Contractor does not voluntarily take corrective action, require the Contractor to stop work and immediately notify the COR.

Further detail of safety assessment procedures is provided in paragraph 10.4.3 below.

5. Security

The PAR must become familiar with all security requirements specified in Annex 0200000, Spec Item 2.8, Security Requirements, of the contract and report any observed violations to the KO.

6. Submittals

The PAR or other designated individual must review reports and other submittals identified in Section F to ensure they comply with applicable requirements and specifications.

6.1 Quality Management Plan Submittal

The Quality Management System Pre-Performance Review Checklist, listed in Attachment A, must be used for the review of the Contractor's QM Plan submittal and as a guideline for discussion of the Contractor's QMS during the post-award kickoff/pre-performance conference. The PAR, FSCM, Contractor Quality Manager, Project Manager, and any applicable subcontractor quality representatives should sign off on the QMS review checklist.

6.2 Accident Prevention Plan Submittal

Per BPMS B-14.18, FSC Safety, the FSC Pre-Performance Safety Checklist must be used for the review of the Contractor's Accident Prevention Plan submittal (including Activity Hazard Analyses (AHAs) and Occupational Risk and Compliance Plans and Programs) and as a guideline for discussion of the Contractor's Safety Program during the post-award kickoff/pre-performance conference. The PAR should coordinate with the local command Safety Representative for assistance in review of Contractor's APP. The PAR, FSCM, Contractor Site Safety and Health Officer (SSHO, Project Manager, and any applicable subcontractor safety representatives should sign off on the Safety review checklist. The Contractor must submit and have an approved APP before any work may begin on site. Additionally, new or revised AHAs must be submitted and reviewed at the beginning of each work phase, when new hazards are identified, or when a new work crew is brought on site.

7. Meetings

All members of the performance assessment team must be familiar with Spec Items in Annex 0200000 Spec Item 2.3.1, Required Conferences and Meetings and Spec Item 2.3.3, Partnering. The FSC Partnering process is addressed in BPMS B-14.16. Details outlining partnering are discussed further in paragraph 1.2 above.

8. Methods of Assessment (MOA)

The PAR will periodically assess services for conformance to contract performance objectives and standards using the following MOAs:

- Planned Sampling (PS) – requires a pre-determined plan for assessing a portion of the work, using sample size and frequency at the applicable assessment level.

- Customer Comments Record (CCR) – consists of customers observing the performance of services they have received and using a pre-determined procedure to provide feedback and/or report observations to the PAR for validation.
- Unscheduled Visits (UV) – impromptu assessments of performance standards and objectives whenever practical.

The MOAs used for assessment of each performance objective and standard are identified within the FAP.

9. Quality Management System (QMS)

When the Government's assessment of the Contractor's performance reveals that the quality management efforts are not effective in ensuring performance objectives and standards are achieved, further action is required. The PAR will conduct a review of the Contractor's QMS processes and quality inspection and surveillance records for the work item(s) where deficiencies are noted to validate the accuracy and effectiveness of the Contractor's QMS.

For QMS to be considered acceptable, the Contractor must demonstrate to the Government through quality management and QC corrective and preventive actions that the risk of failure to meet performance standards has been satisfactorily mitigated.

Further detail of the QMS review process is provided within the assessment procedures in paragraph 10.4 below.

10. Performance Assessment Process

10.1 Post-Award Planning

Performance Assessment personnel must review and understand the final contract requirements, including any amendments made during the solicitation period, paying particular attention to performance objectives and standards and any changes in the scope of work. Performance Assessment personnel should also review the Contractor's technical proposal received in response to the solicitation and initial submittals, such as the QMS program (including Quality Management Plan), Accident Prevention Plan (including Activity Hazard Analyses (AHAs) and Occupational Risk and Compliance Plans and Programs), list of key personnel and employee listing.

Performance Assessment personnel should also meet with customer representatives to review details of the contract and discuss the process for reporting and handling of customer comments and review the contract requirements for partnering and the process described in BPMS B-14.16, FSC Partnering, to be prepared for these meetings.

10.2 Scheduling Assessments

Performance Assessment personnel must develop a planned assessment schedule based upon factors such as selected MOAs, Contractor's recurring performance schedule, population of work, and local priorities and conditions. Certain work requirements may necessitate increased assessment based on performance risk considerations, e.g., services that are mission critical or have life safety impacts. Increased assessment may be conducted by adding AL2 or AL3 assessments or by targeting specific samples during routine AL1 assessment. Risk is measured based on two things: the likelihood (or probability) and event will occur and the consequence (or impact) if the event does occur.

The Functional Assessment Plan (FAP), along with the starting point for assessments based on risk determination should be compared against the Contractor's work schedules as applicable to develop the initial assessment schedule. This schedule may be adjusted when required based on Contractor performance as detailed within the assessment procedures in paragraph 10.4 below.

10.3 Task Orders for Non-Recurring Work

Non-recurring work Task Orders (TO) require 100% assessment. This means that all non-recurring work TOs must be verified as satisfactorily complete prior to payment. For FEDMALL Task Orders, verification is performed by the customer through the validation of the credit card payment and acceptance in FEDMALL. FEDMALL orders that involve high-risk evolutions will be indicated as "HIGH RISK" in the FEDMALL short description. The customer must notify the COR by email or phone immediately upon ordering a high-risk non-recurring work TO. The COR will schedule appropriate safety oversight for these evolutions. For all other non-recurring work TOs, validation is the responsibility of PA personnel. Scheduling of assessments must be planned based on the nature of the work (i.e. simple, short duration tasks performed at a single location vs. complex work performed over a longer period at multiple locations) and added to the assessment schedule after TO award. All assessments of task orders and non-recurring service contracts must be documented on a PAW.

10.4 Assessment Procedures

Every assessment must be documented on a Performance Assessment Worksheet (PAW) using the form listed in Attachment A. This includes assessments of Safety, Quality, and Validated Customer Comments. The assessment procedures based on the scheduled level of assessment performed are detailed below.

10.4.1 AL1 Assessments

The flowchart in Figure 1 below and corresponding descriptions shown below detail the performance assessment process used by the PAR to observe, assess, and document Contractor's performance for 2-digit Spec Items (AL1).

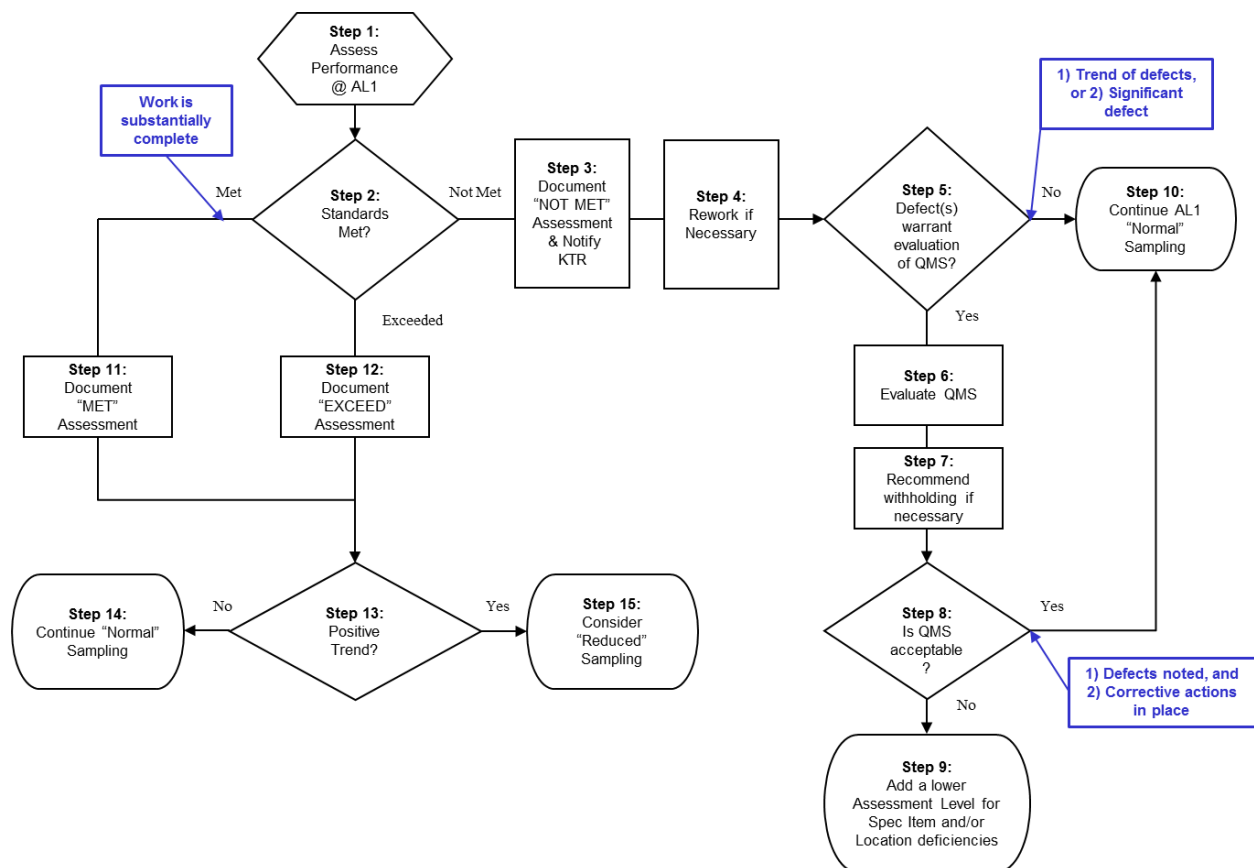


Figure 1. Performance Assessment Process for Assessment Level 1 (AL1)

Step 1: Assess Performance at AL1 – This is the typical starting point of assessment. Assess the Contractor’s performance using the MOA, frequencies, and sample sizes indicated at AL1 of the FAP. The starting point may include additional PA at lower assessment levels for mission critical, safety, or environmental related services as determined based on the risk assessment performed during post-award planning. A Performance Assessment Worksheet (PAW) must be used for each assessment indicating this is an AL1 assessment. A PAW is the form used to document and report Government observations of Contractor performance.

Step 2: Standards Met? – The PAR must evaluate the Contractor to determine if all work is performed in accordance with the performance objectives and standards. The PAR must evaluate the Contractor’s performance of work looking for both failures to comply with performance objectives and standards as well as instances of value-added services or work that exceeds performance standards. The Contractor’s performance will be deemed to have met standards if the work is substantially complete, meaning that any nonconformance is minor or trivial and there is no omission of essential work. If the assessed work is substantially complete, then a performance rating of Standards Met should be assigned. The PAR will document any instances of value-added services or work that exceeds performance standards with supporting narrative on the Performance Assessment Worksheet (PAW). When the assessed work fails to comply with performance objectives and standards, the PAR will document the defect on the PAW and notify the Contractor. Any observation of work that fails to meet any of the specified performance standards will be documented on the PAW as a defect.

DECISION: If performance standards are not met, continue. If performance meets standards, jump to Step 11. If performance exceeds standards, jump to Step 12.

Step 3: Document “Not Met” Assessment and Notify Contractor – Document results of assessment providing specific details of any observed negative performance that fails to meet contract performance standards, with supporting narrative on the PAW. If performance does not meet standards, the PAR will forward a copy of the PAW to the Contractor. The Contractor shall sign and return the PAW to acknowledge receipt of the document. The Contractor’s signature does not constitute agreement with the Government’s assessment, it merely acknowledges that the Contractor has been notified of a Government observed defect. Should the Contractor disagree with the Government’s observations, discussions should be conducted to reach a common understanding of performance objectives and standards.

Step 4: Rework if Necessary – In the case of unsatisfactory or non-performed work, the Government may, at its option, allow the Contractor an opportunity to correct by re-performance at no additional cost to the Government. Rework shall be completed within the timeframe specified in Section E, Consequences of Contractor’s Failure to Perform Required Services clause of the contract. Any rework performed must be assessed and documented on the PAW.

Step 5: Defect(s) Warrant Evaluation of QMS? – Contractor performance warrants evaluation of QMS if: 1) defects are “Significant” or 2) a “Trend” of non-performance has been established. Significant defects include the Contractor’s failure to meet performance objectives and standards that result in damage to the Government, or incomplete major or critical work items. Significant defects are subjective and should be discussed in initial partnering sessions with the Contractor. Trends of non-performance include defects that may not be significant but are recurring and have not been corrected through the Contractor’s QMS. Trends are typically defects found in the same or similar work requirements repeated consistently over several periods of the assessment frequency. DECISION: If QMS evaluation is warranted, continue. If not, jump to Step 10.

Step 6: Evaluate QMS – The PAR must evaluate the Contractor’s QMS to verify proper controls are in place to ensure the delivery of quality services. The PAR must follow the QMS In-Process Review Checklist, listed in Attachment A, and document findings on this form. This review should begin with a focus on the Spec Items and/or location where defects have been found as opposed to a complete audit of the Contractor’s QMS (use Parts A & B of the checklist). The evaluation should identify corrective actions the Contractor is taking for specific discrepancies and identify any QMS changes the Contractor is implementing to preclude systemic problems, avoid repeat discrepancies, and regain Quality Control (QC). If the initial evaluation identifies deficiencies in the Contractor’s QMS with insufficient planned corrective actions or QMS changes, or, if corrective actions and QMS changes planned during previous QMS reviews have been ineffective, then broaden the evaluation to a more comprehensive review of the Contractor’s QMS program (use Parts C through F of the checklist).

Step 7: Recommend withholding if necessary – For any defect that leads to an evaluation of the Contractor’s QMS, withholdings may be warranted. The PAR must document recommendations for withholding of payment on the PAW for non-conforming services when these defects cannot be or have not been corrected by re-performance.

Step 8: Is QMS Acceptable? – The Contractor must demonstrate to the Government that they have taken corrective actions and identified QMS changes to preclude systemic problems, avoid repeat discrepancies, and regain QC. QMS is considered “Acceptable” if the Contractor’s actions will

satisfactorily reduce the risk of continued failure to meet performance standards. **DECISION:** If QMS is unacceptable, continue. If QMS is acceptable, jump to Step 10.

Step 9: Add a lower Assessment Level for Spec Item and/or Location deficiencies – When the Contractor’s QMS has not adequately identified root causes for non-performance and implemented corrective action necessary to regain QC, additional PA at Assessment Level 2 or 3 (AL2 or AL3) must be conducted for the Spec Item and/or location deficiencies as shown in Figure 2. The PAR should discuss with the SPAR/COR to determine if additional AL2/3 assessments are warranted. [End of this assessment]

Step 10: Continue AL1 “Normal” Sampling – The PAR shall document all findings, including a summary of the findings associated with the Contractor’s QMS evaluation, on the PAW. The PAR must continue sampling the size identified as “Normal” in the FAP at AL1. [End of this assessment]

Step 11: Document “MET” Assessment – Document results of assessment particularly noting what work requirements were assessed and details of the observations which indicate that performance complied with contract requirements providing any additional supporting narrative on the PAW. Jump to Step 13.

Step 12: Document “EXCEED” Assessment – Document results of assessment providing specific details of the work or performance that exceeded contract performance standards, with supporting narrative indicating the benefit to the Government on the PAW.

Step 13: Positive Trend Established? – If the Contractor has established a trend of performance that meets or exceeds standards, repeated consistently over several periods of the assessment frequency, the PAR should consider sampling at the reduced level (Jump to Step 15). If a trend has not yet been established the PAR must continue normal sampling.

Step 14: Continue “Normal” Sampling – The PAR must continue sampling the size identified as “Normal” in the FAP at AL1. [End of this assessment]

Step 15: Consider “Reduced” Sampling – The PAR should adjust sampling to the size identified as “Reduced” in the FAP at AL1. [End of this assessment]

10.4.2 AL2/3 Assessments

The flowchart in Figure 2 below and corresponding descriptions shown below detail the performance assessment process used by the PAR to observe, assess, and document Contractor’s performance for 3-digit and 4-digit Spec Items (AL2/3).

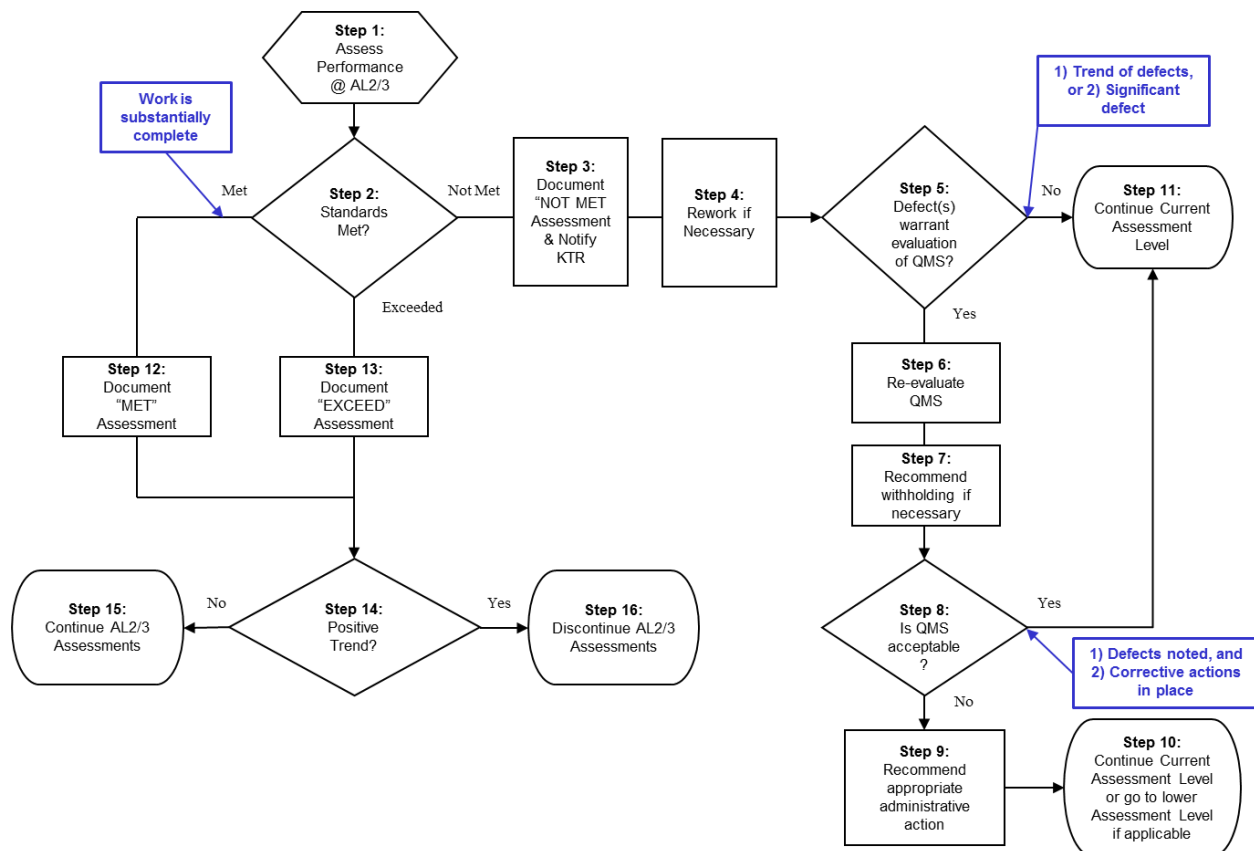


Figure 2. Performance Assessment Process for Assessment Level 2 or 3 (AL2 or AL3)

Step 1: Assess Performance at AL2 or AL3 – Start additional assessment(s) at a lower level if QMS evaluation at AL1 was unacceptable. Certain work requirements may necessitate normal assessment at AL2 or AL3 based on performance risk considerations, e.g., services that are mission critical or have life safety impacts. Assess the Contractor’s performance using the MOA, frequencies, and sample sizes indicated at the appropriate assessment level, e.g., AL2 or AL3 of the FAP.

Step 2: Standards Met? – The PAR must evaluate the Contractor to determine if all work is performed in accordance with the performance objectives and standards. The PAR must evaluate the Contractor’s performance of work looking for both failures to comply with performance objectives and standards as well as instances of value-added services or work that exceeds performance standards. The Contractor’s performance will be deemed to have met standards if the work is substantially complete, meaning that any nonconformance is minor or trivial and there is no omission of essential work. If the assessed work is substantially complete, then a performance rating of Standards Met should be assigned. The PAR will document any instances of value-added services or work that exceeds performance standards with supporting narrative on the Performance Assessment Worksheet (PAW). When the assessed work fails to comply with performance objectives and standards, the PAR will document the defect on the PAW and notify the Contractor. Any observation of work that fails to meet any of the specified performance standards will be documented on the PAW as a defect. **DECISION:** If performance standards are not met, continue. If performance meets standards, jump to Step 12. If performance exceeds standards, jump to Step 13.

Step 3: Document “Not Met” assessment and Notify Contractor – Document results of assessment providing specific details of any observed negative performance that fails to meet contract performance standards, with supporting narrative on the PAW. If performance does not meet standards, the PAR will forward a copy of the PAW to the Contractor. The Contractor shall sign and return the PAW within the specified timeframe to acknowledge receipt of the document. The Contractor’s signature does not constitute agreement with the Government’s assessment, it merely acknowledges that the Contractor has been notified of a Government observed defect. Should the Contractor disagree with the Government’s observations, discussions should be conducted to reach a common understanding of performance objectives and standards.

Step 4: Rework if Necessary – In the case of unsatisfactory or non-performed work, the Government may, at its option, allow the Contractor an opportunity to correct by re-performance at no additional cost to the Government. Rework shall be completed within the timeframe specified in Section E, Consequences of Contractor’s Failure to Perform Required Services clause of the contract. Any rework performed must be assessed and documented on the PAW.

Step 5: Defect(s) Warrant Evaluation of QMS? – Contractor performance warrants evaluation of QMS if 1) defects are “Significant”, or 2) a “Trend” of non-performance has been established. Significant defects include the Contractor’s failure to meet performance objectives and standards that result in damage to the Government, or incomplete major or critical work items. Significant defects are subjective and should be discussed in initial partnering sessions with the Contractor. Trends of non-performance include defects that may not be significant but are recurring and have not been corrected through the Contractors QMS. **DECISION:** If QMS evaluation is warranted, continue. If not, jump to Step 11.

Step 6: Re-evaluate QMS – The PAR must reevaluate the Contractors QMS to verify proper controls are in place to ensure the delivery of quality services. This review should be limited to the Spec Items and/or location where defects have been found as opposed to a complete audit of the Contractor’s QMS. The evaluation should identify corrective actions the Contractor is taking for specific discrepancies, and identify any QMS changes the Contractor is implementing to preclude systemic problems, avoid repeat discrepancies, and regain Quality Control (QC).

Step 7: Recommend withholding if necessary – For any defect that leads to an evaluation of the Contractor’s QMS, withholdings may be warranted. The PAR must document recommendations for withholding of payment on the PAW for non-conforming services when these defects cannot be or have not been corrected by re-performance.

Step 8: Is QMS Acceptable? – The Contractor must demonstrate to the Government that they have taken corrective actions and identified QMS changes to preclude systemic problems, avoid repeat discrepancies, and regain QC. QMS is considered “Acceptable” if the Contractor’s actions will satisfactorily reduce the risk of continued failure to meet performance standards. **DECISION:** If QMS is unacceptable, continue. If QMS is acceptable, jump to Step 11.

Step 9: Recommend appropriate administrative action – The PAR should make recommendations to the Contracting Officer via the COR/FSCM for appropriate administrative actions. Administrative actions may include additional performance review meetings, issuance of a CDR, withholding of payment including liquidated damages, or interim CPARS rating. The PAR must also document recommendations for withholding of payment on the PAW for non-conforming services when defects cannot be corrected by re-performance.

Step 10: Continue Current Assessment Level or go to lower Assessment Level if applicable – The PAR shall document all findings, including a summary of the findings associated with the Contractor’s QMS evaluation, on the PAW. The PAR shall continue sampling at the size and frequency identified in the FAP at the appropriate assessment level or can move to a lower level of assessment if applicable. Additionally, if there is a negative trend in Contractor performance, the PAR should consider modification of the MOAs, sample sizes, and frequencies included in the FAP. The PAR should discuss with the FSCM/COR to determine if additional assessments or changes to the FAP are warranted. [End of this assessment]

Step 11: Continue Current Assessment Level – The PAR shall document all findings, including a summary of the findings associated with the Contractor’s QMS evaluation, on the PAW. The PAR shall continue sampling at the size and frequency identified in the FAP at the current assessment level. [End of this assessment]

Step 12: Document “MET” Assessment – Document results of assessment particularly noting what work requirements were assessed and details of the observations which indicate that performance complied with contract requirements providing any additional supporting narrative on the PAW. Jump to Step 14.

Step 13: Document “EXCEED” Assessment – Document results of assessment providing specific details of work or performance that exceeds contract performance standards, with supporting narrative indicating the benefit to the Government on the PAW.

Step 14: Positive Trend Established? – If the Contractor has established a trend of acceptable performance over a period of time, e.g., three months, the PAR should discontinue lower level assessments (Jump to Step 16). If a positive trend has not yet been established the PAR must continue at the current assessment level.

Step 15: Continue AL2/AL3 Assessments – The PAR must continue sampling at the size and frequency identified in the FAP at the appropriate assessment level. [End of this assessment]

Step 16: Discontinue AL2/AL3 Assessments – The PAR should discontinue the additional lower level assessment and move to a higher assessment level or reduce to normal AL1 assessment. [End of this assessment]

10.4.3 Safety Assessment

As detailed in BPMS B-14.18, FSC Safety, proper oversight of Contractor safety is an integral part of effective performance assessment. There are two preferred methods for assessing a Contractor’s safety performance: 1) Assessing safety while conducting regular planned sampling; and 2) Documenting “unscheduled visits” to specifically assess safety anytime the performance of work can be observed.

Note: Anytime a safety issue is observed, the PAR must take appropriate immediate action to stop work as necessary until the unsafe practices are properly corrected.

The PAR shall use the FSC Safety Assessment Checklist to record all safety assessments, identifying specific areas where safety issues were noted and including a supporting narrative regarding the safety issues observed in the comments block (attach checklist to the associated PAW). Similar to the assessment process detailed above, the PAR should consider the significance of safety issues and any

trends observed in evaluating the need for further review of the Contractor's safety program and the addition of more scheduled assessments.

If a detailed review of the Contractor's safety program is deemed necessary, the PAR must evaluate the Contractor's Accident Prevention Plan (APP)/Activity Hazard Analysis (AHA) to verify proper safety controls are in place to ensure their employees are performing work in accordance with EM 385-1-1. This review shall ensure the APP/AHA is site specific and relevant to the service process. The safety program review should identify discrepancies between the Contractor's APP/AHA with the EM 385-1-1 and identify any corrective actions the Contractor is implementing to preclude systemic problems and avoid repeat safety issues. The PAR should coordinate with the local command Safety Representative for assistance in review of Contractor's APP.

The PAR must also be familiar with other safety responsibilities detailed in BPMS B-14.18, including assisting with Occupational Safety and Health Administration (OSHA) inspections and ensuring Contractors follow the proper procedure for mishap notification.

10.4.4 Management and Administration Assessment

The following requirement must be conducted for all FSC and BOS contracts exceeding \$1,000,000 in total contract value (including unexercised options and orders). Consult with COR and KO for decision on use of this assessment for contracts of lesser value.

Contractor compliance with contract requirements, including those specified in Annex 0200000 or Spec Item 2 of the functional annex, can generally be evaluated through the assessment of work performed. For example, the Contractor must provide properly trained and qualified personnel to perform work in order to meet the standards specified in the contract. However, there remain certain overall management and administration requirements that cannot be effectively assessed through PA scheduled per the FAPs. Therefore, the COR will conduct a monthly assessment to evaluate the Contractor's compliance with management and administration requirements as specified in Annex 0200000 using the Annex 2 Management and Administration Evaluation Checklist, listed in Attachment A.

10.4.5 Contract Discrepancy Reports

Contract Discrepancy Reports (CDRs), listed in Attachment A, are a formal administrative action intended to document and track Contractor corrective actions for resolution of continued unsatisfactory performance. CDRs will be issued for repeated failures where the Contractor has an unacceptable QMS that has not been effectively corrected. That is, the following conditions have occurred:

- 1) Defects at AL1 led to a QMS evaluation,
- 2) The Contractor's QMS was found to be unacceptable and additional assessments were scheduled for the AL2/3 level,
- 3) AL2/3 assessments revealed further defects and the QMS evaluation was again unacceptable.

Issuance of a CDR requires the Contractor to evaluate the noted discrepancy, determine root cause of the failure to perform, and develop a plan to ensure contract requirements are met. CDRs require

Contractor response and Government acceptance of the Contractor's corrective action. CDRs must be tracked until officially closed out by the Government.

11. Assessment Summary and Evaluation

11.1 Monthly Performance Assessment Summary (MPAS)

The PAR and FSCM will collect, review, and evaluate the results of all performance assessments including PAW documentation, safety assessments, validated customer comments, customer evaluations, trend data, and Contractor QMS corrective and preventive actions. The PAR summarizes PA information and completes the comments block on the MPAS for each annex/sub-annex. The COR reviews completed annex/sub-annex MPAS, provides recommended actions as applicable, assigns an overall technical rating for the function, and validates the MPAS by signing it. The COR consolidates all annex/sub-annex ratings with supporting comments on the MPAS Coversheet, listed in Attachment A, provides a recommended overall rating for the Contractor's performance, and validates the MPAS Coversheet by signing it. Supporting information (e.g. copies of completed PAWs, CCRs, QMS, Safety checklists, and other assessment documentation) must be made available with the MPAS.

11.2 Invoice Validation and Withholdings

Results of performance assessments and other PA information must also be used as part of the validation of the Contractor's monthly invoice amount. The COR will make a determination for the value of the estimated damages to the Government for non-conforming or non-performed work and recommend to the KO the appropriate withholding including liquidated damages (LDs). Documentation must be provided to support the reduced value of services and/or the estimated cost and related profit to correct deficiencies and complete unfinished work.

The COR is designated as a Departmental Accountable Official (DAO) due to the duties for invoice verification and the responsibility to ensure that payment recommendations are made only for services received that meet the performance standards of the contract. The COR must review the submitted invoices for accuracy and completion of required supporting documentation. The COR must reference MPASs with associated PAWs and other assessment documentation to verify completion of required services and determine if any withholdings or deductions are warranted.

For invoices submitted through Wide Area Work Flow (WAWF), the COR performs the inspector role as detailed in BPMS S-17.4.14.2 Process Wide Area Work Flow (WAWF) Invoices. For non-WAWF invoices, follow local process for documenting invoice reviews.

11.3 COR Activity File

In order to provide an auditable trail of documentation supporting the assessment of Contractor performance, the COR is required to maintain a file for each contract/order assigned. A list of items that must be included (at a minimum) in a COR file can be found in BPMS B-14.3, Performance Assessment, Process Step 14.3.7 "Establish COR File". The COR File will be maintained until the end of contract performance, when it is then turned over to the Contracting Officer for inclusion as part of the official contract file.

All content shall be in filed in the approved Uniform Electronic Filing Format and located on a secure shared drive.

11.4 Performance Assessment Board (PAB)

The Performance Assessment Board membership consists of the following:

PAB Chairperson – COR

PAB Member – FSCM

PAB Member – KO

The PAB will convene quarterly to review and evaluate Contractor performance. The date, time, and location of PAB meetings will be established by the PAB Chairperson and communicated to all PAB members.

Additional participants may include Small Business Specialist, Site Safety Manager, Customer representative as specifically requested or approved by the PAB Chairperson. The personnel may participate in the discussion of Contractor performance, but will have no vote on consensus ratings.

The COR (with support as required from PARs/SPARs) should be prepared to brief the PAB on the monthly summary information and trend data and offer a recommended consensus rating to the PAB based on assessment results. Each PAB member should consider the information presented and individually document ratings with supporting comments for each area defined in CPARS on the PAB Rating Summary form, listed in Attachment A. The PAB Chairperson must develop a consensus rating for each factor and document comments relevant to each rating factor from the PAB review. At, or near, the end of each performance period, the PAB should review previous PAB Rating Summaries in addition to performance during the most recent evaluation period to develop overall input for official CPARS ratings and relevant comments. This final PAB report should be used by the Assessing Official Representative (AOR) for entry into CPARS for the performance period.

Specific details of the PAB process are provided in BPMS B-14.26, Performance Assessment Board.

12. Summary

The PAP is based on the premise that the Contractor is responsible for managing and ensuring that quality controls meet the terms of the contract. The PAP facilitates consistent and effective tiered PA to verify the accuracy and completeness of the Contractor's QMS and to assess overall compliance with performance objectives and standards. The Government will evaluate Contractor performance through appropriate assessment methods to ensure payments are made only for services that comply with contract requirements. This PAP is a "living" document that will be revised or modified as circumstances warrant.

Attachment A: List of Performance Assessment Forms

All NAVFAC Performance Assessment forms and documents can be found on the NAVFAC HQ PW2 SharePoint Online page:

<https://flankspeed.sharepoint-mil.us/sites/NAVFACHQPW2164/SitePages/Performance-Assessment.aspx>

Note: PA Personnel must check this page periodically to obtain updated forms.

The following forms/documents are specific to Contract N40080-25-R-1007

- Functional Assessment Plan (FAP)
 - Annex 1503050 Grounds Maintenance
 - Annex 1503060 Pavements Clearance
- Annex 2 Management and Administration Evaluation Checklist
- Monthly Performance Assessment Summary (MPAS)
- Monthly Performance Assessment Summary (MPAS) Coversheet

The following forms/documents are provided in standard format for use in performance assessment of all NAVFAC Facility Support Contracts:

- Performance Assessment Worksheet (PAW)
- QMS Pre-Performance Review Checklist
- QMS In-process Review Checklist
- FSC Safety Assessment Checklist
- Customer Comment Record
- Contract Discrepancy Report
- Performance Assessment Board (PAB) Rating Summary

Attachment B: List of Performance Assessment Representatives

<<*Note to Spec Writer/COR:* Attach List of PARs using the form found in BPMS B-14.3 Performance Assessment>>

Attachment C: List of Technical Advisors

<<*Note to Spec Writer/COR:* Attach List of Technical Advisors using the form found in BPMS B-14.3 Performance Assessment>>